

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

April 27, 2026

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in City Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Dr. Kathy Emmons, Ken Esquibel, Pete Laybourn, Mark Moody, Dr. Mark Rinne (arrived at 6:02 via Zoom), Tom Segrave, Jeff White and Lawrence Wolfe. Also present: Kylie Soden, City Clerk. The pledge of allegiance was recited.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda). Upon request by Mr. Laybourn, and pursuant to support received by Mr. Moody and Mr. White, item #15 was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Mr. Moody and Mr. Wolfe, item #29(a) was removed from the Consent Agenda. Upon request by Mr. Laybourn, and pursuant to support received by Dr. Aldrich and Mr. Moody, item #29(d) was removed from the Consent Agenda. Dr. Aldrich moved to approve remaining items, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on April 13, 2026. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Amending Section 13.20.050, General Prohibitions, and Section 13.20.070, Local Limits, of Chapter 13.20 Wastewater Treatment and Disposal, of the Code of the City of Cheyenne, Wyoming, to revise local discharge limits and related provisions in compliance with NPDES and WPDES permit requirements. Reporting for Public Services, Dr. Emmons moved to approve on third and final reading, seconded by Dr. Aldrich. Dr. Emmons moved to amend by substitute dated April 7, 2026, seconded by Dr. Aldrich. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Dr. Emmons moved to postpone to May 11, 2026, seconded by Dr. Aldrich. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Amending Section 2.76.040, designation of Downtown Development District, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Municipal Code of the City of Cheyenne, Wyoming, to expand the Downtown Development District. Dr. Emmons moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4668)

ORDINANCE – 3rd READING – Appropriating money for the Reed Avenue Corridor Project. Reporting for Finance Committee, Mr. Esquibel moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Moody voting “no”. [Clerk’s note: Due to technical issues, no vote was recorded for Dr. Rinne]. Public comment was made by: Jim Walter, Visit Cheyenne. Comments were made by the following members of the governing body: Dr. Aldrich, Mr. Laybourn and Dr. Rinne. (#4669)

ORDINANCE – 2nd READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification for land located south of I-80, east of Southwest Drive from County LI Light Industrial, AG Agricultural, and AR Agricultural Residential to LI Light Industrial. Dr. Emmons moved to approve on second reading, seconded by Mr. Wolfe. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 2nd READING – Pursuant to Section 2.2.2 Planned Development – Regulating Plan or Development Master Plan and Section 5.6.2 PUD – Planned Unit Development District of the Unified Development Code, amending Ordinance No. 4524 by modifying certain standards of the adopted district, Planned Unit Development (PUD), for Sweetgrass (located southeast of the intersection of College Drive and Avenue C). Dr. Emmons advised there was no recommendation from Public Services Committee. Dr. Emmons moved to approve on second reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Public comments were made by: Casey Palma, Palma Land Planning and Charles Miller. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins and Mr. Moody.

ORDINANCE – 2nd READING – Annexing to the City of Cheyenne, Wyoming, land west of Roundtop Road and adjacent to Happy Jack Road. Dr. Emmons advised there was no recommendation from Public Services Committee. Dr. Emmons moved to approve on second reading, seconded by Mr. Segrave. Dr. Emmons moved to amend by substitute dated April 15, 2026, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Mr. Segrave moved to refer the ordinance to the Public Services Committee, and the committee to be instructed to report at the June 8, 2026 council meeting, seconded by Dr. Emmons. Dr. Aldrich moved to amend by changing the date to the September 14, 2026 council meeting, seconded by Dr. Emmons. Motion to amend carried. Voting “yes” – all members of the governing body. Motion to postpone as amended carried. Voting “yes” – all members of the governing body. During comments made by Charles Miller, Dr. Aldrich and Mr. White raised points of order that comments were off subject. Mayor Collins responded that comments were not germane to the subject. Public comments were made by: Cindy DeLancey, Holland and Hart, Tom Glissmeyer, ViaWest Group, Gay Woodhouse, for Cox Ranch LLC, Heather Madrid, Jordan (no last name given), Conner Nicklas, Falen Law Offices, representing land owner, Rick Keslar, Brendan Krachie, Thomas White, Sue Rocha, Brad Emmons, AVI, agent for applicant, Megan Plummer, Richard Lyle, Darrell Seifert, Alex Bowler, Cheyenne Area Landowners Coalition, Jack O’Neill, Skybox, Mark Eisele, King Ranch, Jane Lessenger, Sandy Walck, Sam Galeotos, Ann Margaret Burns, Michael White, Barry Meyer, Steve Johnson, Minda Blevins, Brian Pixley, Janet Tolman, Charles Miller, Chris Colson, Kathy Scigliano, Reba Epler

and Mandie Shattuck. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons, Mr. Esquibel, Mr. Moody, Mr. Segrave and Mr. Wolfe.

Following a brief recess, Mayor Collins reconvened the meeting at 8:55 p.m.

ORDINANCE –2nd READING –Amending the Official Zoning Map of the City of Cheyenne, establishing the zoning classification of AG – Agricultural and P – Public for land annexed to the City of Cheyenne located west of Roundtop Road and adjacent to Happy Jack Road. Dr. Emmons advised there was no recommendation from Public Services Committee. Dr. Emmons moved to approve on second reading, seconded by Mr. Segrave. Dr. Emmons moved to amend by substitute dated April 15, 2026, seconded by Mr. Segrave. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Mr. Segrave moved to refer the ordinance to the Public Services Committee, and the committee to be instructed to report at the September 14, 2026 council meeting, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. During comments made by Charles Miller regarding the postponement, Mr. Moody and Mr. White raised points of order that comments were off subject. Mayor Collins responded that comments were not germane to the postponement. Public comment was made by: Charles Miller. Comment was made by the following member of the governing body: Dr. Rinne.

ORDINANCE –2nd READING – Amending the Official Zoning Map of the City of Cheyenne, changing the zoning classification for land located west of Roundtop Road and adjacent to Happy Jack Road from AG – Agricultural to BP – Business Park. Dr. Emmons advised there was no recommendation from Public Services Committee. Dr. Emmons moved to approve on second reading, seconded by Dr. Aldrich. Mr. Segrave moved to refer the ordinance to the Public Services Committee, and the committee to be instructed to report at the September 14, 2026 council meeting, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. During comments made by Charles Miller regarding the postponement, Mr. Moody and Mr. Laybourn raised points of order that comments were off subject. Mayor Collins responded that comments were not germane to the postponement. Public comments were made by: Charles Miller, Jim Chiro and Chris Colson. Comments were made by the following members of the governing body: Mayor Collins and Dr. Rinne.

ORDINANCE – 1st READING – Amending enforcement and permitting requirements related to Oversized Vehicles and making conforming amendments – referred to Public Services Committee. (Sponsor – Dr. Emmons)

RESOLUTION – Approving a proposition to impose the 1% Specific Purpose Sales and Use Tax in Laramie County, State of Wyoming, for the exclusive purpose of funding specific purposes for specific amounts; the propositions to be voted on at the election to be held on August 18, 2026. Mr. Esquibel moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Mr. Laybourn and Mr. Moody. (#6523)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Bison Apartments, City of Cheyenne, Laramie County, Wyoming, located north of West College Drive, east of Grand Harmony Boulevard, and west of Walterscheid Boulevard. Motion (per Consent Agenda) carried. (#6524)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for O’Neil Edge, City of Cheyenne, Laramie County, Wyoming, located southwest of the intersection of West 5th Street and O’Neil Avenue. Motion (per Consent Agenda) carried. (#6525)

RESOLUTION – Approving an increase of the budget of the Cheyenne Downtown Development Authority for the Fiscal Year beginning July 1, 2025, and ending June 30, 2026. Mr. Esquibel moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich, Mr. Laybourn and Mr. Moody voting “no”. Public comments were made by: Alan Sheldon and Charles Miller. Comments were made by the following members of the governing body: Dr. Aldrich, Mayor Collins, Dr. Emmons and Mr. Moody. (#6526)

[CA] RESOLUTION – Overruling the Planning Commission’s disapproval of an amendment to the Future Land Use Map of PlanCheyenne changing the land use designation from Mixed-Use Residential to Mixed-Use Employment for property generally located south of I-80, east of Southwest Drive. Motion (per Consent Agenda) carried. (#6527)

[CA] RESOLUTION – Amending the Future Land Use Map of PlanCheyenne changing the land use designation from Mixed-Use Residential to Mixed-Use Employment for property generally located south of I-80, east of Southwest Drive. Motion (per Consent Agenda) carried. (#6528)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Dry Creek Vista, City of Cheyenne, Laramie County, Wyoming (east of North College Drive and north of Rock Springs Street). Motion (per Consent Agenda) carried. (#6529)

RESOLUTION – Amending City provided health insurance related benefits for specified permanent part-time City employees and members of the City Council of the City of Cheyenne. Mr. Esquibel advised there was no recommendation from Finance Committee. Mr. Esquibel moved to adopt, seconded by Mr. Moody. Mr. Segrave called for the question, seconded by Dr. Emmons. Motion to call for the question carried. Voting “yes” – all members of the governing body. Main motion failed. Voting “no” – all members of the governing body with the exception of Dr. Aldrich and Mr. Moody voting “yes”. Public comment was made by: Alan Sheldon. Comment was made by the following member of the governing body: Dr. Aldrich.

[CA] RESOLUTION – Re-appropriating the Fiscal Year 2026 Budget of the City of Cheyenne in accordance with the provisions of W.S. §§ 16-4-112 & 16-4-113 – referred to Finance Committee. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Amending the Future Land Use Map of PlanCheyenne changing the land use designation from Urban Transition Residential to Mixed-Use Employment for property generally located west of Roundtop Road and adjacent to Happy Jack Road and amending the Urban Service Boundary – referred to Public Services Committee. (Sponsor – Dr. Emmons)

[CA] RESOLUTION – Appropriating excess funds from the November 2, 2021, One Percent (1%) Specific Purpose Sales and Use Tax for the acquisition of real property – referred to Finance Committee. (Sponsor – Dr. Aldrich)

[CA] RESOLUTION – Adopting the Title VI Program for the Cheyenne Transit Program for the City of Cheyenne, Wyoming – referred to Finance Committee. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Expressing the support of the Governing Body for the submission of an application by the Cheyenne Transit Program to the Wyoming Department of Transportation for grant funding under the Wyoming Rural Public Transportation Grant – referred to Finance Committee. (Sponsor – Mr. Esquibel)

[CA] RESOLUTION – Approving the budget of the Cheyenne Downtown Development Authority for the fiscal year beginning July 1, 2026 and ending June 30, 2027 – referred to Finance Committee. (Sponsor – Mr. White)

Purchase and Sale Agreement between the City of Cheyenne and Nick and April Ferrulli, c/o NAS Investment Group, LLC for property located at 803 West 16th Street, 1510 Reed Avenue, 1508 Reed Avenue and 1506 Reed Avenue for Greenway and Compliance use (2021 Specific Purpose Option Tax Fund and General Fund). Mr. Esquibel moved to approve in an amount not to exceed \$650,000.00, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. During comments made by Charles Miller, multiple points of order were raised that comments were off subject. Mayor Collins responded that comments were not germane to the subject. Public comments were made by: Charles Miller, Alan Sheldon and Jim Chiro. Comments were made by the following members of the governing body: Mayor Collins, Mr. Laybourn and Mr. Moody. (#8340)

[CA] Drainage Easement Agreement between the City of Cheyenne and Christopher C. Post and Deborah L. Post, Trustees of the Post Revocable Trust for a recently constructed stormwater detention pond. Motion (per Consent Agenda) carried. (#8341)

[CA] Professional Services Agreement between the City of Cheyenne and WM Recycle America, LLC for Recycling Services for the City of Cheyenne Sanitation Division (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$750,000.00 for 3 years). (#8342)

Grant Agreement between the City of Cheyenne and the U.S. Department of Transportation, Federal Transit Administration for a Section 5339(b) Competitive, and Section 5339 Formula Grant for the Cheyenne Transit Facility Renovation at 1800 Westland Rd. (FTA Section 5339 Grant). Mr. Esquibel moved to approve in the amount of \$4,143,600.00, seconded by Mr. Moody. Motion carried. Voting “yes” – all members of the governing body. Comment was made by the following member of the governing body: Mr. Laybourn. (#8343)

[CA] Grant Agreement between the City of Cheyenne and the U.S. Department of Transportation, Federal Transit Administration for a Section 5307 – Operating Assistance, ADA Paratransit Operating assistance, PM Vehicles/Facilities, & Capital Grant for the Cheyenne Transit System Program (FTA Section 5307 Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$3,291,390.00). (#8344)

[CA] Contract between the City of Cheyenne and BNSF Railway for a BNSF Railway and Grant Applicant 22905 Agreement for the Reed Avenue Rail Crossing Elimination Project (2017 Specific Purpose Option Tax Fund) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #7955 between the City of Cheyenne and Trihydro Corporation for Landfill Mapping and Surveying Services (Solid Waste Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$49,008.00). (#7955)

[CA] Contract Modification #1 to Contract #8259 between the City of Cheyenne and SPARE Labs Inc. for Transit Paratransit Dispatch System and new Fixed Route Tracking System (Transit Fund). Motion (per Consent Agenda) carried (in an amount not to exceed \$78,000.00). (#8259)

Modification to Bid #E-4-25 for (3) Fire Apparatus for the City of Cheyenne, Cheyenne Fire Rescue Department (General Fund Reserves and 2027-2030 Specific Purpose Option Tax Fund). Mr. Esquibel advised the item was reviewed under other items for the agenda at the April 21, 2026 Finance Committee meeting, therefore, provisions of Title 2 of City Code had been met. Mr. Esquibel moved to approve with a savings of \$44,035.06 on the original bid, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. Comments were made by the following members of the governing body: Dr. Aldrich and Mayor Collins.

[CA] Contract Modification #1 to Contract #8218 between the City of Cheyenne and AVI Engineering, PC for On-Call Engineering Services (2022-2023 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-20-26 for a Contract between the City of Cheyenne and Richardson Construction, Inc. for the Cheyenne Botanic Gardens - Smith Education, Agriculture & Trial (E.A.T.) Garden (Friends of the Botanic Gardens). Motion (per Consent Agenda) carried (in an amount not to exceed \$854,891.21). (#8345)

[CA] Consideration of Bid #E-14-26 for furnishing Residential Automated Refuse Carts - 95/65 Gallons, for the Sanitation Division (Solid Waste Fund). Motion (per consent agenda) carried (accepted bid from Rehrig Pacific Company in an amount not to exceed \$204,884.00).

[CA] Consideration of Bid #E-15-26 for furnishing 1.5 Cubic Yard Rear-Load Dumpsters for the Sanitation Division (Solid Waste Fund). Motion (per consent agenda) carried (accepted bid from Kois Bros Equipment in an amount not to exceed \$88,472.00).

[CA] Consideration of Bid #E-17-26 for furnishing Bituminous Asphalt Hot Mix, Tack Oil, and Cold Mix on an annual basis, for the City of Cheyenne, Street & Alley Division (2019-2022 Optional 1% Sales Tax Fund). Motion (per consent agenda) carried (accepted bid from Simon Contractors for Bituminous Asphalt Hot Mix and Cold Mix in an amount not to exceed \$495,750.00 and the bid from JTL Group Inc. d/b/a Knife River for Tack Oil in an amount not to exceed \$37,500.00, for a total of \$533,250.00).

[CA] Consideration to Purchase between the City of Cheyenne and Musco Sports Lighting, LLC, for the purchase of a Mobile Video Trailer for the Community Recreation and Events Department (2023-2026 Optional 1% Sales Tax Fund, 2021 Specific Purpose Option Tax Fund and META Grant). Motion (per Consent Agenda) carried (in an amount not to exceed \$161,826.00).

[CA] Consideration of Bid #S-19-26 for a Contract between the City of Cheyenne and Reiman Corp. for the Storey Boulevard Extension Construction project (2019-2022 and 2023-2026 Optional 1% Sales Tax Fund) – referred to Finance Committee.

[CA] Consideration of Bid #S-21-26 for a Contract between the City of Cheyenne and Construction Specialists, Inc. for the Cheyenne Transit Facility - Interior and Exterior Renovations and Upgrades project (Board of Public Utilities and Federal Transit Administration & WYDOT Grants) – referred to Finance Committee.

Appointment of Jason Powell, Brian Fenimore, and Paul Pomeroy to the Fire Code Board of Appeals; Justin Tripp to the Planning Commission; Cindy Orellana to the Housing and Community Development Advisory Council and Josephine Carlson to the Historic Preservation Board. Dr. Aldrich moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointments).

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Announcement was made of a Public Hearing to be held May 11, 2026 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, WY, and via electronic conference meeting, for a microbrewery permit application filed with the City Clerk’s Office for Jagerhund Brewing, LLC d/b/a Jagerhund Brewing, 3521 E. Lincolnway, Cheyenne, WY.

Public comments were made by the following under Other Business: Jim Chiro, Alan Sheldon and Charles Miller. During comments made by Mr. Miller, Mayor Collins ruled him out of order, stating his remarks were not accurate in relation to previous agenda items.

The following members of the governing body made comments under Other Business: Dr. Aldrich, Mayor Collins, Dr. Emmons, Dr. Rinne, Mr. Segrave, Mr. White and Mr. Wolfe.

There being no further business to come before the governing body, the meeting was officially adjourned at 10:06 p.m.

Submitted by,

Kylie Soden,
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
May 6, 2026